		Notably, Defendant does not address this argument in its reply. At most, Defendant contends that "[w]hile Defendant acknowledges that the PAGA bar is unenforceable, it is the only substantive unfair provision, and therefore it can easily be severed from the Agreement." (Reply at p. 13.) While the Court agrees that the waiver of Plaintiff's right to bring representative PAGA claims could be severed, that does not address how the remaining unconscionable terms permeate the agreement's central purpose. Moreover, Defendant's failure to address the severability issue more broadly—including whether the agreement may be enforced as a whole when its arbitration provisions' scope, duration, and lack of mutuality are found unconscionable, and whether such provisions are part of the central purpose of the contract or collateral such that the agreement as a whole may be saved through severance—constitutes a concession on these points. (*DuPont Merck Pharmaceutical Co. v. Super. Ct.* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"].) In sum, the Court finds that the agreement contains both elements of procedural and substantive unconscionability, and since the unconscionability permeates the central purpose of the agreement, the Court exercises its discretion to refuse to enforce the agreement as a whole. Accordingly, Defendant's motion to compel arbitration is **DENIED**. Moving party shall give notice.
112	**Harmon vs. Wescom Central Credit Union** **2025-01528737**	**Motion to Compel Arbitration** Defendant Wescom Central Credit Union's Motion to Compel Arbitration is **DENIED**. Defendant's motion seeks "an order compelling the complaint of Plaintiff ERICK HARMON ('Plaintiff') to binding arbitration and staying all superior court proceedings in this matter until the completion of the arbitration." (ROA #18, p. 1.) Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA) and that he has refused arbitration. Instead, Plaintiff disputes the existence of the agreement and contends that the agreement is unenforceable because it is unconscionable and cannot be saved by severance. (ROA #29 [Opp.], passim.) **Procedural Issues** As an initial matter, the Court notes after filing and serving its initial moving papers including a supporting declaration by Pamela Escobar on 3/17/2026 (ROA #16, 18), Defendant thereafter on 7/13/2026 filed and served another supporting declaration by Jennifer A. Morin (ROA #27, Exh. AA [Morin Decl.]). The 7/13/2026 declaration was still timely filed and served pursuant to Code of Civil Procedure (CCP) section 1005, subdivision (b). Therefore, the Court may properly consider Morin's declaration. Defendant's initial moving papers relied exclusively on a 2023 arbitration agreement between the parties, as that was also the only agreement attached

		to Escobar's declaration. (See generally ROA #18 [Mot. P&A], passim; ROA #16, Exh. A [2023 Agreement].) Morin's supplemental declaration provided an earlier 2022 arbitration between the parties and attested to facts relating to Plaintiff's signing and Defendant's receipt of both the 2022 and 2023 agreements. (See generally Morin Decl., passim, Exh. 3 [2022 Agreement].) Plaintiff objects to the Court's consideration of Morin's declaration and the 2022 Agreement because "Defendant did not file or serve an amended or supplemental memorandum [of points and authorities] explaining any theory of formation or enforcement based on the 2022 Agreement" or "address the relationship between the 2022 Agreement and the 2023 Agreement, including whether the 2023 Agreement superseded the 2022 Agreement." (Opp. at p.4.) Plaintiff contends that because "'[f]airness dictates all arguments be presented in the memorandum of points and authorities' . . . the Court should therefore confine its analysis to the 2023 Agreement and decline to consider the purported 2022 Agreeement." (*Id.*, quoting *Nationwide Insurance Co. of America v. Tipton* (2023) 91 Cal.App.5th 1355, 1365.) The Court acknowledges that it "may decline to consider an argument that does not comply with rule 3.1113 of the California Rules of Court," which provides that a memorandum of points and authorities "'must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.'" (*Nationwide*, *supra*, at p. 1365, quoting Rules of Court [CRC], rule 3.1113(b).) But that argument only goes so far. In Defendant's reply, Defendant notes that the 2022 and 2023 Agreements are "identical" and "<u>the exact same</u>." (ROA #35 [Reply], pp. 1-2, emphasis original.) The Court also finds that the two agreements are the same in substance. Therefore, it makes no difference whether the Court's ruling is based upon the language of the 2022 or 2023 Agreement. The only difference, it appears, is that the 2022 Agreement was electronically signed by Plaintiff, whereas the 2023 Agreement was "wet signed" by Plaintiff. Plaintiff's opposition advances only evidence and arguments directed at proving the existence (or lack thereof) of the 2023 Agreement. (Opp. at pp. 5-7.) Even if the Court agrees with Plaintiff that the Court will only consider whether the 2023 Agreement exists in ruling upon this motion, the Court may nevertheless consider the evidence contained in Morin's declaration to decide that issue, since the declaration was timely filed and served under CCP section 1005(b).

		Merits **Existence of Arbitration Agreement** Both the FAA and the CAA require the existence of a valid arbitration agreement before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Proc. [CCP], § 1281.2.) The petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which can be satisfied either by setting forth the agreement's provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party's signature; "[f]or this step, it is not necessary to follow normal procedures of document authentication." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal quotes omitted; see also Cal. Rules of Court [CRC], rule 3.1330 [requiring same].) The burden then shifts to the opposing party to produce evidence to challenge the authenticity of the agreement. (*Gamboa*, *supra*, 72 Cal.App.5th at p. 165.) "If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (*Id.* at pp. 166-167.) The petitioner must satisfy their burden "by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842, internal citations omitted.) Here, Defendants satisfied their initial burden by producing a copy of the subject 2023 Agreement via Escobar's declaration. Plaintiff acknowledges that this shifted the burden to him to disprove the existence of the agreement. (See Opp. at p. 6 [contending "Plaintiff has satisfied this burden"].) Plaintiff relies only on his declaration that he "do[es] not remember seeing or recall signing arbitration agreement in April 2023." (ROA #31 [Harmon Decl.], ¶ 9.) Notably, Plaintiff's declaration does not dispute that the wet signature appearing on the 2023 Agreement is his or contend that the signature was forged or inauthentic. "[A]n individual is capable of recognizing his or her own personal signature. If the individual does not deny that the handwritten personal signature is his or her won, that person's failure to remember signing is of little or no significance." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 757; see also *id.* at pp. 756 ["in the absence of any evidence that their purported signatures were not their own, there was no evidence that plaintiffs did not in fact sign the agreement"], 758 ["If a party confronted with his or her handwritten signature on an arbitration agreement is unable to allege that the signature is inauthentic or forged, the fact that that person does not recall signing the agreement neither creates a factual dispute as to the signature's authenticity nor affords an independent basis to find that a contract was not formed"].)

		In any case, even if Plaintiff's assertion that he does not recall signing the 2023 Agreement was considered sufficient to meet his burden of producing evidence to return the burden to Defendant, the Court finds that Defendant has sufficiently satisfied that burden. Morin's declaration attaches copies of other documents wet-signed by Defendant, including his application for employment and his acceptance of Defendant's offer letter. (Morin Decl., Exhs. 1-2.) Plaintiff also does not dispute those signatures are his. The Court finds that the signatures are sufficiently similar that the signature on the 2023 Agreement appears to be Plaintiff's. Therefore, the Court finds that an agreement to arbitrate the controversy exists in the form of the 2023 Agreement. **Unconscionability** Plaintiff next contends that even if the 2023 Agreement exists, it is procedurally and substantively unconscionable. (See Opp., 7-15.) This argument has merit. Unconscionability has both a procedural and a substantive element: The procedural element focuses on the existence of "oppression or surprise due to unequal bargaining power," and the substantive element focuses on "overly harsh or one-sided results." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114, internal quotes omitted.) For unconscionability to render an agreement or clause unenforceable, both procedural and substantive unconscionability must be present—but "they need not be present in the same degree." (*Id.*) A "sliding scale" applies such that "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Id.*) The party opposing arbitration bears the burden of proving an unconscionability defense. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 42.) **Procedural Unconscionability** "Procedural unconscionability concerns the manner in which the contract was negotiated and the circumstances of the parties at that time. It focuses on the factors of oppression and surprise. The oppression component arises from an inequality of bargaining power of the parties to the contract and an absence of real negotiation or a meaningful choice on the part of the weaker party." (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329, internal quotes & citations omitted.) "'Surprise' involves the extent to which the supposedly agreed-upon terms of the bargain are hidden in a prolix printed form drafted by the party seeking to enforce the disputed terms." (*A & M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 486.) Oddly, Plaintiff contends that the 2023 Agreement is procedurally unconscionable mostly based upon the circumstances under which the *2022*

		Agreement was signed. (Opp. at p. 8.) This is irrelevant given that the relevant agreement on this motion is the 2023 Agreement, for all the reasons discussed above. As to the 2023 Agreement, there is little question it was a contract of adhesion, as signing the agreement appears to have been "require[d]" of all employees, and nothing in Defendant's evidence suggests that employees could negotiate its terms. (See Morin Decl., ¶ 9, Exh. 5.) However, "the adhesive nature of a contract is one factor the courts may consider in determining the degree of procedural unconscionability." (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84, fn. 4.) Moreover, the "adhesive aspect of an agreement is not dispositive," as overall enforceability still depends on the "sliding scale" analysis of procedural and substantive unconscionability. (*Serpa v. Cal. Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704; see also *Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817 [contracts of adhesion are "an inevitable fact of life for all citizens"].) Therefore, Plaintiff has shown a minimal degree of procedural unconscionability due to the adhesive nature of the agreement. **Substantive Unconscionability** "Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided." (*Hayden v. Elegance at Dublin* (2023) 97 Cal.App.5th 1280, 1287, internal quotes omitted.) "[T]he central idea [is] that unconscionability doctrine is concerned not with a simple old-fashioned bad bargain, but with terms that are unreasonably favorable to the more powerful party." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910-911, internal quotes & citations omitted [also confirming that "overly harsh," "unduly oppressive," "so one-sided as to shock the conscience," and "unfairly one sided" all point to this same "central idea"].) Unconscionable terms include those that "contravene the public interest or public policy" or "terms . . . that attempt to alter in an impermissible manner fundamental duties otherwise imposed by the law." (*Id.* at p. 911.) "[W]here no meaningful choice was exercised upon entering the contract, the test is whether the terms are so extreme as to appear unconscionable according to the mores and business practices of the time and place." (*Id.* at p. 912, internal quotes omitted.) Plaintiff contends that the subject arbitration agreement is substantively unconscionable because it is overbroad in scope. This argument has merit. The 2023 Agreement provides as follows: 1. ***Any and all claims, disputes or controversies*** between Wescom and Employee shall be resolved by binding arbitration pursuant to the provisions of this Agreement, except as otherwise prohibited by law.

2. To the fullest extent permitted by law, this Agreement applies to ***all claims, disputes or controversies, of any kind whatsoever***, between Employee and Wescom, whether raised by Employee, or by Wes com, including but not limited to those arising out of or related to Employee's hiring, employment, the terms and conditions of that employment (including but not limited to rest and meal breaks, classification of exempt and non-exempt employees, reimbursement of costs incurred in the course and scope of employment, wage statement violations, etc.), remuneration (including but not limited to wages, commissions, bonuses, paid sick leave, paid vacation, overtime pay, paid time off, etc.), and the termination of employment ("Claim" or "Claims"). Such Claims ***include any and all complaints,*** charges, causes of action (whether at law, in equity or otherwise), or demands arising under the law of contract (express or implied), ***the law of torts***, ***any applicable unfair competition or trade secrets law***, the federal and California Constitutions, federal, state and local statutes, ordinances, and regulations, such as but not limited to, the Age Discrimination in Employment Act, Title VII of the Civil Rights Act of 1964, the Americans With Disabilities Act, the California Fair Employment and Housing Act, the federal Family and Medical Leave Act, the California Family Rights Act, the Fair Labor Standards Act, the Equal Pay Act, the California Labor Code, and all laws of similar importance.

(2023 Agreement, ¶¶ 1-2, emphases added.)

In *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 321-325, similar provisions were held to be unconscionably overbroad in scope. (See also *Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91, 107-108 [same].)

While the *Cook* "recognize[d] that employment contracts can provide a 'margin of safety' that grants extra protection to the party with superior bargaining power if there is a legitimate commercial need for doing so," it also held that "the 'business realities' that give rise to that special need [must be] explained in the contract itself [or] must be factually established." (*Cook*, *supra*, at p. 324.) Here, the 2023 Agreement itself offers no legitimate commercial need for such broad coverage. Nor has Defendant offered any evidence on this point.

Defendant contends that the Court should instead interpret the 2023 Agreement to apply only to the parties' employment-related claims by following *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241 and *Cocom v. ABM Aviation, Inc.* (9th Cir. 2026) 179 F.4th 1168 in distinguishing *Cook*. This argument lacks merit.

In *Ayala-Ventura*, the court distinguished *Cook* in that *Cook*'s unconscionability holding was "in part because of the multifarious ways in which a claim against USC 'completely unrelated to [Cook's] employment' could arise," including that "if Cook were to undergo a botched surgery at USC's hospital in 15 years, her claims would still be subject to arbitration." (*Ayala-Ventura*, *supra*, 119 Cal.App.5th at p. 257, brackets original, quoting *Cook*, *supra*, 102 Cal.App.5th at p. 318.) The *Ayala-Ventura* court then found that "[g]iven CCS solely provides commercial janitorial services, we are hard-pressed to discern how a similarly vast range of claims completely unrelated to Ayala-Ventura's employment could arise, nor does Ayala-Ventura offer a similar panoply of potential claims she might assert. The Agreement's scope is not unconscionably broad under the circumstances in this case." (*Id.* at p. 257.)

Similarly, in *Cocom*, the court found that *Cocom* was more analogous to *Ayala-Ventura* and distinguishable from *Cook* because "ABM, like the employer in *Ayala-Ventura*, provides commercial janitorial services." (*Cocom*, *supra*, 179 F.4th at p. 1177.) Indeed, the *Cocom* court also found it significant that the *Cook* agreement's "enumeration of covered claims there included claims unrelated to employment—most notably, a general reference to tort claims. It was the prospect of precisely those sorts of claims—tort suits unrelated to employment—that loomed large in the *Cook* court's analysis: the examples it relied on to illustrate the agreement's unconscionable breadth were tort suits unrelated to employment." (*Id.* at p. 1175-1176, internal citations omitted.) The *Cocom* court also noted that "[t]he same was true in *Stoker*, which applied *Cook* to conclude that a similarly worded agreement unconscionably applied to claims unrelated to employment. The enumeration of covered claims in *Stoker*, as in *Cook*, included tort claims, and the court used torts unrelated to employment to illustrate the agreement's unconscionable breadth." (*Id.* at p. 1176, internal citation omitted.) Because "[n]othing in the MAA's enumeration of covered claims requires that the MAA covers tort claims—or any other claims—unrelated to employment," the *Cocom* court held that the broad arbitration agreement in that case could be interpreted to mean that it did covered only the parties' employment-related claims.

Here, in contrast, the 2023 Agreement *does* include "tort" claims. (2023 Agreement, ¶ 2.) And as Plaintiff points out, "Defendant is a financial institution that operates branches and interacts directly with members and the public. Those operations create realistic possibilities for future contract, tort, statutory, financial, or premises-liability disputes having nothing to do with Plaintiff's former employment." (Opp. at p. 12; see also Compl., ¶ 20 [alleging Plaintiff "performed various duties for Defendants including, among other things, collecting payments on mortgages, second mortgages, vehicle loans, credit cards, and lines of credit"].) Therefore, *Cook* is directly applicable, while *Ayala-Ventura* and *Cocom* are distinguishable, and the agreement here is overbroad in scope.

To further illustrate the overbreadth of the scope of the 2023 Agreement, the agreement covers all claims "between Employee and Wescom," and "Employee" is defined to include "Employee and his or her spouse [and] registered domestic partner." (2023 Agreement, ¶¶ 1-2, 14.)

Defendant also contends that *Cook* is distinguishable because it found substantive unconscionability "based on a myriad of factors, including that the provisions lasted indefinitely and for the remainder of the employees' lives, . . . among other issues." (Reply at pp. 5-6, emphasis omitted.) In so arguing, Defendant also emphasized that the *Cook* holding was in part based on the agreement's scope including "*tort*" claims. (*Id.* at p. 6, quoting *Cook*, emphasis original to Reply.)

In any case, the Court also finds that the agreement's duration is overbroad because it is infinite. The agreement does not specify a duration or termination date. In both *Ayala-Ventura* and *Cook*, the courts found that the agreements were not infinite in duration because those agreements applied only to employment-related claims, not tort claims, so the employment context provides an inherent limitation on the agreement's duration. (*Ayala-Ventura*, *supra*, 119 Cal.App.5th at pp. 257-258; *Cocom*, *supra*, 179 F.4th at p. 1177-1178.) Here, given that the 2023 Agreement explicitly includes tort claims and is there not susceptible to an interpretation that reads out the reference to tort claims, the Court finds that the agreement is therefore of infinite duration as there is no inherent limitation provided by any employment context.

The Court does, however, reject Plaintiff's other two arguments on unconscionability.

First, Plaintiff contends that the 2023 Agreement contains an impermissible waiver of representative PAGA claims. (Opp. at pp. 9-10.) In support, Plaintiff relies on ¶ 3 of the agreement, which states as follows:

> Except as otherwise required under applicable law, (a) Employee and Wescom expressly intend and agree that class action procedures shall not be asserted, nor will they apply, in any arbitration pursuant to this Agreement; (b) Employee and Wescom agree that each will not assert class action claims against the other in arbitration or otherwise; and (c) each of Employee and Wescom shall only submit their own, individual claims in arbitration and will not seek to represent the interests of others.

(2023 Agreement, ¶ 3.) Plaintiff contends that the final clause in subdivision (c), that the parties "will not seek to represent the interests of others," constitutes a waiver of Plaintiff's representative PAGA claims.

The Court disagrees with this interpretation of ¶ 3. First, the entire paragraph is subject to the opening phrase "[e]xcept as otherwise required under applicable law." Thus, if the law requires that arbitration agreements not waive representative PAGA representative claims, then such claims are not waived by this paragraph. Second, subdivision (c) appears after subdivisions (a) and (b), which only discuss "class action claims," not "any and all representative claims." Therefore, subdivision (c)'s reference to "not seek[ing] to represent the interests of others" refers to class action claims, not representative PAGA claims. (See Civ. Code, § 1641 ["The whole of a contract is to be taken together, so as to given effect to every part, if reasonably practicable, each clause helping to interpret the other"]; *People ex. rel. Lockyer v. R.J. Reynolds Tobacco Co.* (2003) 107 Cal.App.4th 516, 526, internal quotes omitted ["The language in a contract must be construed in the context of that instrument as a whole"].)

Second, Plaintiff contends that the 2023 Agreement must be read together with a separate confidentiality policy found in Defendant's Employee Handbook. (Opp. at pp. 12-14.) Plaintiff contends that "the Handbook and [Arbitration] Agreements were . . . imposed as parts of the same employment relationship" and "address the same subject: how disputes arising from alleged misuse of Wescom's confidential information and trade secrets will be resolved." (*Id.* at p. 13.) Therefore, Civil Code section 1642 applies, which requires courts to construe together "[s]everal contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction." (*Id.* at pp. 12-13.)

Plaintiff has submitted a copy of Defendant's Confidentiality Policy, which appears to have been a part of the Employee Handbook. (ROA #33 [Wilson Decl.], Exh. C at pp. WESCOM-HARMONPL 000289-000290.) That policy states, in relevant part:

> During the course of your employment with Wescom you may have access to, acquire, or become acquainted with trade secrets, proprietary data or other confidential information relating to Wescom or other companies with which Wescom is doing business that is not general knowledge.
>
> All confidential information or proprietary data obtained in the course of your employment, except for your own personnel and payroll records, may not be used or disclosed by you to anyone not employed by Wescom, or to another employee who has no need for or right to know such data or information without permission from an authorized member of Executive Team or President's Staff.
>
> . . .
>
> Wescom reserves the right to avail itself of all legal or equitable remedies to prevent impermissible use of confidential information or to recover damages incurred as a result of such impermissible use of confidential information . . . .

(*Id.*)

Plaintiff contends that the last quoted sentence, i.e., Defendant's reservation of rights, "does not state that those remedies must be pursued exclusively in arbitration or that its reservation is subject to the Arbitration Agreements," this Confidentiality Policy has therefore "separately reserved to Defendant 'all legal or equitable remedies' for the confidentiality and trade-secret claims Defendant is most likely to bring." (*Id.* at p. 12.)

Even if Civil Code section 1642 applies and this Confidentiality Policy is construed together with the Arbitration Agreement, the Court finds that

		Defendant's reservation of rights to seek "all legal and equitable remedies" must be interpreted to be subject to the parties' arbitration agreement, which covers "any and all complaints**,** charges, causes of action (whether at law, in equity or otherwise), or demands arising under . . . any applicable unfair competition or trade secrets law." (2023 Agreement, ¶ 2.) This interpretation not only construes these two provisions together under Civil Code section 1642, but it also comports with both Civil Code section 164, which requires that "[t]he whole of the contract is to be taken together, so as to given effect to every part, if reasonably practicable, each clause helping to interpret the other," and Civil Code section 1643, which requires that "[a] contract must receive such an interpretation as will make it lawful, operative, definite, reasonable, and capable of being carried into effect, if it can be done without violating the intention of the parties." In sum, the Court finds that the 2023 Agreement is substantively unconscionable because of its overbroad scope and duration. Because Plaintiff has shown both procedural and substantive unconscionability, the Court finds that the 2023 Agreement is unconscionable. **Severance** Accordingly, the remaining issue is whether the unconscionable provisions of the 2023 Agreement may be severed. The agreement itself provides in ¶ 15 that "[i]f any provision of this Agreement is held to be invalid or unenforceable, in whole or in part, the remaining provisions of this Agreement shall continue to be valid and are required to be complied with, to the fullest extent permitted by law, in order to permit the maximum enforceability of this Agreement." (See also *Roman v. Super. Ct.* (2009) 172 Cal.App.4th 1462, 1477-1478, quoting *Armendariz*, *supra*, 24 Cal.4th at p. 122 ["the strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement: Although 'the statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement[,] . . . it also appears to contemplate the latter course only when an agreement is "permeated" by unconscionability'"].) There are "no bright line rules" requiring courts to refuse enforcement of the agreement or to sever or restrict an unconscionable term depending on the number of unconscionable terms. (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 516.) Instead, in determining whether severance is appropriate or even possible, "[c]ourts are to look to the various purposes of the contract. If the central purpose of the contract is tainted with illegality, then the contract as a whole cannot be enforced. If the illegality is collateral to the main purpose of the contract, and the illegal provision can be extirpated from the contract by means of severance or restriction, then such severance and restriction are appropriate." (*Armendariz*, *supra*, 24 Cal.4th at p. 124.)

		Here, Plaintiff contends that the agreement is so permeated with illegality that it cannot be saved by severance and should not be enforced. (Opp. at pp. 14-15.) The Court agrees. The Court also finds that the illegality taints the central purpose of the contract—i.e., arbitration—such that the contract as a whole cannot be enforced. Notably, Defendant does not address this argument in its reply. At most, Defendant contends that to the extent the Court finds that ¶ 3 contains of the 2023 Agreement contains a waiver of representative PAGA claims, "that single clause can easily be severed from the rest of the enforceable contract in order to effectuate the parties' intentions to handle disputes through arbitration." (Reply at p. 7.) Defendant's failure to address the severability issue more broadly—including whether the agreement may be enforced as a whole when its arbitration provisions' scope and duration are found unconscionable, and whether such provisions are part of the central purpose of the contract or collateral such that the agreement as a whole may be saved through severance—constitutes a concession on these points. (*DuPont Merck Pharmaceutical Co. v. Super. Ct.* (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue"].) In sum, the Court finds that the agreement contains both elements of procedural and substantive unconscionability, and since the unconscionability permeates the central purpose of the agreement, the Court exercises its discretion to refuse to enforce the agreement as a whole. Accordingly, Defendant's motion to compel arbitration is **DENIED**. Moving party shall give notice.
113	**Quinn vs. Valley Post-Acute And Rehab LLC** **2025-01518740**	**Motion to Compel Deposition (Oral or Written)** Plaintiff Harvey Quinn's unopposed motion to compel the deposition of the Person Most Knowledgeable of defendant VPR Ops, LLC is GRANTED. The deposition is to take place at a mutually agreeable location within 45 days notice of this order, unless the parties agree otherwise. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court therefore awards plaintiff reasonable expenses in the amount of $1,210.00, payable by defendant VPR Ops, LLC within 20 days notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030. Plaintiff is ordered to give notice.